

Amendment No. 1 to SB2353

Briggs
Signature of Sponsor

AMEND Senate Bill No. 2353*

House Bill No. 2261

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Section 66-24-101(a), is amended by deleting subdivision (1) and substituting:

(1) All bonds for the conveyance of real or personal estate; provided, that all bonds for conveyance of real or personal property must contain:

(A) The signatures of all parties subject to the bond, authenticated pursuant to § 66-22-101; and

(B) The expiration date of the bond, which includes the day, month, and year;

SECTION 2. Tennessee Code Annotated, Section 66-24-101(a), is amended by adding the following subdivision:

(29) All agreements for the conveyance of real property or contracts, memoranda, abstracts, or affidavits for the sale of real property, or similar documents by whatever similar or other name entitled; provided, that such documents must contain:

(A) The signature of the owner of the property or the owner's attorney-in-fact or court-appointed representative and the signature of the proposed purchaser. The signatures of all parties must be authenticated pursuant to § 66-22-101; and

(B) The expiration date of the agreement, which includes the day, month, and year.

SECTION 3. Tennessee Code Annotated, Section 66-24-101, is amended by adding the following as a new subsection:

(g) Except as provided in subdivision (d)(3), any affidavit presented under this section must not be registered unless sworn to in front of a notary public and contain the following language:

SWORN TO AND SUBSCRIBED before me this ____ day of
_____, _____(year).

Notary Public

My Commission Expires: _____.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.